

addition to the joint employer issue, the demurrer is sustained with leave to amend on this ground.

Defendant Equity HR argues that the unfair competition claim (Ninth Cause of Action) fails because the other claims fail. The Court is already sustaining the demurrer as to this claim on the joint employer issue and declines to rule on this argument as to Equity HR until there are facts showing Equity HR as a joint employer. Equity HR may re-raise this argument in the future.

5. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT RE: BLAIR
FILED BY:

TENTATIVE RULING:

Defendant Healthmet, Inc. and Benjamin Greer, M.D.'s demurrer to the Second Amended Complaint is overruled as to cause of action 1, 2, 3, 4, 8 and 9, and otherwise sustained with leave to amend. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

Plaintiff is suing for (1) constructive tortious discharge in violation of public policy, (2) gender discrimination, (3) harassment based on gender, (4) failure to prevent discrimination and harassment, (5) violation of Labor Code section 1102.5, (6) violation of Labor Code section 6310-6311, (7) assault, (8) intentional infliction of emotional distress and (9) unfair business practices.

The Court previously sustained Defendants' demurrer with leave to amend because Plaintiff requested leave to amend. The Court did not consider the individual claims in depth.

Defendants Healthmet and Greer demur to each cause of action based on the failure to allege sufficient facts to state a cause of action under Code of Civil Procedure section 430.10(e).

Plaintiff alleges that she worked at Defendant Employer from February 2022 to May 2024. (SAC ¶11.) She alleges that when she interviewed for the job, Greer stated that he could be better than Plaintiff's fiancée. (SAC ¶12.) Plaintiff alleges that Greer is the principal and owner of the business, which creates a reasonable inference that Greer was Plaintiff's supervisor. (SAC ¶12.) Two weeks after being hired, Greer showed Plaintiff images of very attractive woman dressed in tight, revealing yoga outfits. Greer ask Plaintiff what she thought and if he should go out with the woman. (SAC ¶13.)

Plaintiff was promoted from receptionist to office manager in October 2022. (SAC ¶14.) Initially, Greer came to the office where Plaintiff worked once a week. However, the main doctor at Plaintiff's location lost her medical license in March 2023 and Greer began coming to the office on a daily basis. (SAC ¶¶15-18.) Plaintiff alleges that Defendant Employer and Greer had a pattern of discriminating, harassing and retaliating against staff based on gender. (SAC ¶22.) Greer verbally abused and sexually harassed a former staff member O'Neil. (SAC ¶¶23-25.) On one occasion, Plaintiff was on her knees cleaning the fridge when Greer came in and made a comment about Plaintiff being on her knees. (SAC ¶26-27.) Greer commented on the physical appearance of a medical assistant. (SAC ¶28.) Greer showed Plaintiff photographs of his ex-wife and asked if Plaintiff thought she was pretty.

(SAC ¶129.)

When hiring a medical assistant, Greer asked Plaintiff about an applicant's nationality or race because of her name. Plaintiff told Greer it was illegal to ask those types of questions. (SAC ¶¶50-51.) When Greer met the applicant, he told Plaintiff that he would not hire her because she was fat. (SAC ¶53.)

Several times, Greer would yell at Plaintiff regarding problems with the billing team or when Plaintiff was too busy and could not answer all incoming phone calls. Greer would become very angry if Plaintiff did not answer his calls, even if she was busy helping a patient. Greer yelled at Plaintiff for small things. (SAC ¶¶30-49, 54-87.) Ultimately, Plaintiff became ill and went out on medical / disability leave on September 11, 2023. (SAC ¶88.) She resigned in May 2024 after determining that the job was too unsafe and toxic for her to return to work. (SAC ¶¶89-90.)

Constructive discharge in violation of public policy (First Cause of Action)

"The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm. [Citation.]" (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154.)

The "public policy" must meet several requirements. "First, the policy must be supported by either constitutional or statutory provisions. Second, the policy must be 'public' in the sense that it 'inures to the benefit of the public' rather than serving merely the interests of the individual. Third, the policy must have been articulated at the time of the discharge. Fourth, the policy must be 'fundamental' and 'substantial.' " (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 889-890.) FEHA's prohibition on discrimination based upon an employee's protected status (such as gender) is a sufficient public policy. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 897 [age discrimination]; *Rojo v. Kliger* (1990), 52 Cal. 3d 65, 70 [sex discrimination].)

" 'Constructive discharge, like actual discharge, is a materially adverse employment action.' [Citation.]" (*Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.) " 'Constructive discharge occurs when the employer's conduct effectively forces an employee to resign. ... As a result, a constructive discharge is legally regarded as a firing rather than a resignation. [Citation.]" (*Turner v. Anheuser-Busch* (1994) 7 Cal.4th 1238, 1244-1245 (*Turner*).)" (*Steele, supra*, 162 Cal.App.4th at 1253.)

"Constructive discharge occurs only when the employer coerces the employee's resignation, either by creating working conditions that are intolerable under an objective standard, or by failing to remedy objectively intolerable working conditions that actually are known to the employer. [Citation.] We have said 'a constructive discharge is legally regarded as a firing rather than a resignation.' [Citation.]" (*Mullins v. Rockwell Internat. Corp.* (1997) 15 Cal.4th 731, 737.)

Defendants argue that Plaintiff has not alleged facts showing constructive discharge, has not alleged a sufficient public policy and has not alleged that her constructive discharge was substantially motivated by Greer's behavior.

Plaintiff alleged repeated incidents of yelling by her supervisor and also alleged facts showing sexual harassment. Plaintiff alleged that Greer refused to fire Plaintiff, but continued to blame her and

yell at her. The Court finds that Plaintiff has alleged facts showing constructive discharge. Further, the facts alleged show that the public policy here was gender or sex discrimination. Finally, there is a sufficient nexus between Greer's treatment of Plaintiff, causing the constructive discharge, and Greer's alleged discrimination based on gender.

The demurrer to constructive discharge in violation of public policy is overruled.

Gender discrimination (Second Cause of Action)

For a discrimination claim, "[g]enerally, the plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. [Citations.]" (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

Defendants argue that Plaintiff has not provided sufficient facts showing that Defendants discriminated against her based on gender. The facts alleged show that Greer treated Plaintiff differently because of her gender, including making sexual innuendoes and discussing other women's appearances with Plaintiff. These allegations are sufficient at the pleading stage to show that Defendants' actions were based on a discriminatory motive.

Defendants argue that Plaintiff has not alleged an adverse employment action. In opposition, Plaintiff argues that they allege that "Plaintiff was transferred from Oakland to Pittsburgh (sic), had job duties removed, and was constructively discharged. (SAC ¶¶ 77, 81.)" Paragraphs 77 and 81 do not include these factual allegations, nor was the Court able to find allegations that Plaintiff was transferred or had job duties removed elsewhere in the SAC. Plaintiff has, however, alleged sufficient facts to show constructive discharge. "'Constructive discharge, like actual discharge, is a materially adverse employment action.'" (*E.E.O.C. v. University of Chicago Hospitals* (7th Cir. 2002) 276 F.3d 326, 331–332.)" (*Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.)

Therefore, the demurrer to the discrimination claim is overruled.

Harassment based on gender (Third Cause of Action)

In order to state a claim for harassment in violation of FEHA, Plaintiff must allege facts showing that "(1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. [Citation.]" (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.)

" 'The law prohibiting harassment is violated "[w]hen the workplace is permeated with discriminatory intimidation, ridicule and insult that is ' "sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment." ' " [Citations.]" [Citation.] ...All harassment claims require severe or pervasive conduct. [Citation.]" (*Caldera v. Department of Corrections & Rehabilitation* (2018) 25 Cal.App.5th 31, 38.) " '[H]arassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives. Harassment is

not conduct of a type necessary for management of the employer's business or performance of the supervisory employee's job. [Citation.]' " (*Reno v. Baird* (1998) 18 Cal.4th 640, 645-646.)

Defendants argue that Plaintiff has not alleged sufficient facts to show that harassment by Greer was severe and pervasive. Here, the allegations are that Greer was Plaintiff's supervisor and made several sexual innuendo comments and discussed other women's bodies with Plaintiff. These actions by Plaintiff's supervisor are sufficient to show severe conduct and thus, Plaintiff has alleged facts showing sexual harassment.

The demurrer to the harassment claim is overruled.

Failure to prevent discrimination and harassment (Fourth Cause of Action)

In order to state a claim for the failure to prevent harassment or discrimination, the plaintiff must first state a claim for that harassment or discrimination. (*M.F. v. Pacific Pearl Hotel Management LLC* (2017) 16 Cal.App.5th 693, 700-701; see also CACI 2527.)

Defendants argue that Plaintiff has not alleged a claim for harassment or discrimination and therefore this claim also fails. As explained above, the Court has found that Plaintiff has alleged claims for harassment and discrimination. The demurrer to this claim is overruled.

Labor Code 1102.5 (Fifth Cause of Action)

Labor Code section 1102.5 protects employees from retaliation when the employee discloses wrongdoing by the employer to various authorities. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 709.) The authorities include "a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance". (Labor Code section 1102.5(b).)

A prima facie case of "whistleblower" retaliation under California Labor Code section 1102.5(b) or (c) requires a showing that: (1) plaintiff engaged in a protected activity under the statute, (2) plaintiff was subjected to an adverse employment action, and (3) there is a causal link between the two. (See *Mokler v. Cty. of Orange* (2007) 157 Cal.App.4th 121, 138.) To engage in protected conduct, the employee must have reasonable cause to believe the information disclosed, or the activity they refused to participate in, violates the law. (*Id.* at 139-140.)

Defendant argues that Plaintiff has not alleged any protected activity. In response, Plaintiff points to paragraph 77, which she claims states that she complained about the toxic work environment and was transferred to Pittsburg as a result. Those facts are not alleged in paragraph 77 and the Court could not find allegations regarding a transfer to Pittsburg in the complaint.

The demurrer as to the Labor Code section 1102.5 claim is sustained with leave to amend.

Labor Code section 6310-6311 (Sixth Cause of Action)

Labor Code sections 6310-6311 prohibit employers from retaliating against employees who make complaints about workplace safety, either to their employer or to government agencies, or who participate in proceedings related to workplace safety violations. Section 6310 provides a list of

protected activities, including making a complaint to OSHA, filing a proceeding or testifying in a proceeding related to employee's rights, participating in a safety committee, reporting a work-related injury or requesting work-related injury records. (Labor Code section 6310, CACI 4605.)

Defendants argue that Plaintiff has not alleged facts showing she made complaints about workplace safety, and instead only alleges that she complained about feeling unsafe at work. Defendants also argue that Plaintiff has not alleged any retaliation as a result. Plaintiff has not shown how her complaint that the workplace was unsafe is sufficient to constitute a protected action under section 6310.

As to an adverse employment action, Plaintiff points to paragraph 77 where she claims it alleges that Plaintiff complained about feeling unsafe in the workplace and that the abuse intensified after Plaintiff's complaints and she was transferred and had duties removed following her complaint. Paragraph 77 does not include these allegations. Plaintiff does allege that she told Greer she felt unsafe at work and that his outbursts caused a toxic work environment. (SAC ¶87.) These allegations, however, do not show that Plaintiff participated in one of the actions included in section 6310.

Plaintiff has not alleged facts showing that her actions fell within the protections in section 6310 and she has not alleged an adverse employment action. The demurrer as to the sections 6310-6311 claim is sustained with leave to amend.

Assault (Seventh Cause of Action)

For an assault claim, plaintiff must show that (1) the defendant acted with the intent to cause harmful or offensive contact, or threatened to touch Plaintiff in a harmful or offensive manner; (2) Plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to Plaintiff that the defendant was about to carry out the threat; (3) Plaintiff did not consent to defendant's conduct; (4) Plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing Plaintiff's harm. (*So v. Shin* (2013) 212 Cal.App.4th 652, 668-669.)

Defendants argue that Plaintiff has not alleged an intent to cause harmful or offensive contact by Greer, that she believed she was about to be touched in a harmful or offensive manner or a reasonable apprehension of unwanted touching. Plaintiff argues that she has sufficiently alleged assault because she alleged extreme verbal abuse by Greer and because the Court already found that these allegations describe a potentially violent work environment.

The Court has reviewed the allegations describing Greer's conduct, including the times when he yelled at Plaintiff. None of the allegations show that Greer threatened to touch Plaintiff in a harmful manner or that Plaintiff believed she was about to be touched. Therefore, Plaintiff has not alleged a claim for assault.

The demurrer as to the assault claim is sustained with leave to amend.

Intentional infliction of emotional distress (Eighth Cause of Action)

" 'The elements of the tort of intentional infliction of emotional distress [IIED] are: " '(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme

emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. ...' Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." ' [Citation.] 'Liability for intentional infliction of emotional distress " 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.' " ' [Citation.] A retaliatory motive alone is insufficient to sustain a claim for intentional infliction of emotional distress. [Citation.]" (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 101-102.)

Defendants argue that the allegations here are insufficient to show extreme and outrageous conduct by Greer. Plaintiff argues that the pattern of extreme verbal abuse, gender-based harassment, retaliation, and creation of a "potentially violent" work environment that forced Plaintiff to take medical leave and ultimately resigned, constitutes extreme and outrageous conduct. Here the facts alleged show that Plaintiff's supervisor made several comments with sexual innuendo and discussed other women's appearances with Plaintiff. In addition, Plaintiff's supervisor, Greer, repeatedly yelled at her in front of patients and others. Taken together and read in a light favorable to Plaintiff, the Court finds that the allegations here are sufficient to show extreme and outrageous conduct at the pleading stage. The demurrer to the IIED claim is overruled.

Unfair business practices (Ninth Cause of Action)

Defendants argue that the unfair business practices claim fails because Plaintiff cannot show unlawful, unfair or deceptive practices. Plaintiff has alleged claims for harassment and discrimination, which are unlawful and thus, this argument fails.

The demurrer to the unfair business practices claim is therefore overruled.

Leave to Amend

Defendants argue that Plaintiff should not be given leave to amend because Plaintiff has already amended her complaint twice. This is the first time the Court has provided guidance on Plaintiff's individual causes of action and the Court finds that leave to amend is appropriate.

Defendant Vital Total Health Medical Group's Joinder

Defendant Vital Total Health Medical Group, Inc. filed a joinder on July 10, 2025 that indicated it was set for the same date as Healthmet's demurrer. The joinder, however, was not given its own line on the calendar. Still, it was properly served on Plaintiff and Plaintiff did not oppose the joinder. Further, in the joinder Defendant Vital argues that it is being sued for the same reasons as Healthmet and has the same arguments on demurrer. Therefore the Court will consider Vital's joinder. In the future, however, Vital should ensure that its joinder (should it file another) be given its own line on the calendar.

Defendant Vital Total Health Medical Group, Inc.'s joinder to Healthmet and Greer's demurrer is **overruled as to cause of action 1, 2, 3, 4, 8 and 9 and otherwise sustained with leave to amend**. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.